

Motion for Custody Modification.

IN THE CIRCUIT COURT FOR THE 14th JUDICIAL CIRCUIT FAMILY DIVISION.

MUSKEGON COUNTY, MICHIGAN.

Case No. 2024-001507-DC.

Honorable Judge Jenny McNeill.

Andrew J. Pigors, Plaintiff,

v.

Emily A. Watson, Defendant.

Introduction.

This motion is brought by the Plaintiff, Andrew J. Pigors, who respectfully requests that this Honorable Court modify the existing custody order to grant joint physical and legal custody of the minor child, Lincoln David Watson (LDW), born on November 9, 2022. Plaintiff asserts that the current custody arrangement is no longer in LDW's best interest due to significant changes in circumstances, including the detrimental environment fostered by the Defendant and her family. Plaintiff further requests that the Court review all factors under MCL 722.23, as well as address the improper issuance of a Personal Protection Order (PPO) that has limited parenting time.

Statement of Facts.

1. The Plaintiff, Andrew J. Pigors, has been a consistent, loving, and supportive father to LDW. He has been involved in LDW's daily care, health appointments, and development since birth. 2. Despite the Plaintiff's efforts to co-parent effectively, the Defendant, Emily A. Watson, has limited communication and interfered with parenting time. The improper PPO issued against the Plaintiff has further restricted his involvement in LDW's life. 3. The Defendant's brother, Cody Watson, who lives in the same household, exhibits erratic behavior, including drug use, violent threats, and aggressive discipline, all of which create a dangerous environment for LDW. 4. The Plaintiff has documented evidence of these claims, including third-party statements, text messages, and video/audio recordings. Plaintiff asserts that LDW's safety and well-being are at risk in the Defendant's current household.

Legal Argument.

This motion is grounded in the principle that the Court must consider the best interest factors under MCL 722.23 when determining custody. The Plaintiff asserts that based on the following factors, a modification to 50/50 custody is in LDW's best interest:

1. **Factor (a)**: The emotional ties between parent and child.

The Plaintiff shares a strong emotional bond with LDW, as evidenced by daily care and involvement in LDW's activities. The Defendant has actively limited the Plaintiff's ability to maintain this bond.

2. **Factor (f)**: The moral fitness of the parties involved.

Cody Watson's drug use, gun possession, and violent tendencies create a dangerous and morally unfit environment for LDW. The Defendant, by allowing Cody's presence and behavior to continue, has demonstrated poor moral fitness in her role as a custodial parent.

3. **Factor (g)**: The mental and physical health of the parties.

The Plaintiff is in excellent mental and physical health, while the Defendant's household is fraught with instability due to the actions of her brother and her own medical conditions. The presence of firearms, drugs, and frequent visitors further compromises LDW's safety.

Relief Sought.

For the foregoing reasons, the Plaintiff respectfully requests that this Honorable Court modify the existing custody order and grant the following relief:

1. Joint physical and legal custody of Lincoln David Watson (LDW), with a 50/50 custody schedule.
2. Termination of the current PPO, as it interferes with necessary co-parenting communication and is not in the child's best interest.
3. An immediate review of the best interest factors under MCL 722.23, and consideration of the evidence demonstrating the Defendant's household is unfit for primary custody.

Respectfully submitted,

Andrew J. Pigors.